

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

Put up tomorrow.

**Date :-** 8.12.2011 (Ran Vijai Singh, J.) (S.R. Alam, C.J.)  
RK

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

Matter is called out, however, none is present.

Put up on Tuesday, the 13th day of December, 2011.

**Order Date :-** 9.12.2011

AKSI

(Ran Vijai Singh, J.) (S. Rafat Alam, C.J.)

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

Shri Pankaj Kumar Shukla, learned counsel appearing for respondents No. 2 to 6 raised a preliminary objection about the maintainability of this appeal under the Rules of the Court. He prays for one week time to file counter affidavit.

As prayed, the matter shall appear on 20th of December, 2011.

Shri S.P. Gupta, learned Senior Counsel, assisted by Shri B.C. Rai, appearing for the appellant submitted that, in fact, the Bank Guarantee of Rs.95,00,000.00 against the demand of Rs.97,00,000.00 has already been encashed by the respondents, and the liability, as per the respondents' case, is of Rs.3,00,000.00 (Three Lac). However, this figure is being disputed by the learned counsel appearing for respondents.

Be that as it may, since we have fixed the matter for 20th of December, 2011, the respondents shall not adopt any coercive method for recovery of the amount in question till 20th December, 2011.

**Order Date :-** 13.12.2011

AKSI

(Ran Vijai Singh, J.) (S. Rafat Alam, C.J.)

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

Sri S.P.Gupta, learned Senior Counsel submits that he has received counter affidavit and he will file rejoinder affidavit within 24 hours.

As prayed, put up this matter day after tomorrow i.e., on Thursday i.e., on 22nd December, 2011. It would be open to the counsel for the appellant to file rejoinder affidavit in the meanwhile.

The interim order dated 13.12.2011 will continue till 22.12.2011.

**Order Date :-** 20.12.2011

Pratima

(Ran Vijai Singh, J.) (S.R.Alam, C.J.)

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

Due to paucity of time, this matter could not be taken up today.

As agreed by the learned counsel for the parties, put up this matter in the supplementary list on 10.1.2012.

Interim order dated 13.12.2011 shall continue till then.

**Order Date :-** 22.12.2011  
RK

(Ran Vijai Singh, J.) (S.R. Alam, C.J.)

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Krishna Murari, J.**

As prayed, put up this matter in the supplementary list on 12th January, 2012.

Interim order dated 13.12.2011 is extended till the next date of listing.

**Order Date :-** 10.1.2012      (Krishna Murari, J.) (S.R. Alam, C.J.)  
VKS

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble R.K. Agrawal, J.**

**Hon'ble B. Amit Sthalekar, J.**

As prayed by Shri B.C. Rai put up on 16.1.2012.

As the interim order is expiring today, it is extended till the next date of listing.

**Order Date :-** 12.1.2012

o.k.

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

A mention has been made seeking adjournment on the ground that Sri S.P. Gupta, learned Senior Counsel appearing on behalf of the appellant who has to argue the matter will not be available from 29th January, 2012 to 10th of February, 2012.

As prayed, list the matter on 13th of February, 2012 at the top of the list, peremptorily.

Interim order dated 13.12.2011 is extended till the next date of listing.

**Order Date :-** 25.1.2012

VMA

(S.R. Alam, C.J.)

(Ran Vijai Singh,)



**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Ran Vijai Singh, J.**

As prayed by learned counsel for the parties, list this appeal for final disposal peremptorily on 13.03.2012 on the top of the cause list.

Interim order earlier passed by this Court shall continue till 14.03.2012.

**Order Date :-** 13.2.2012

PKB

(Ran Vijai Singh, J.)      (S.R. Alam, C.J.)

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Vikram Nath, J.**

When the matter was called out, a prayer is made on behalf of Sri S.P. Gupta, learned Senior Counsel appearing for the appellant for adjournment on the ground of his personal difficulty.

As requested, with the consent of the learned counsel for the respondents, the matter shall appear on 5th April, 2012.

The interim order dated 13.12.2011 shall continue till then.

**Order Date :-** 13.3.2012  
RK

(Vikram Nath, J.)

(S.R. Alam, C.J.)

**Chief Justice's Court**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Syed Rafat Alam, Chief Justice**

**Hon'ble Vikram Nath, J.**

Since this Bench is in the midst of a part-heard matter which is likely to continue till the next week and the learned counsel for the parties submit that the matter being urgent requires early disposal as the interim order is operating, this case is released for being placed before another Bench on Monday, i.e. 9th April, 2012, after taking nomination from Hon'ble the Chief Justice.

Interim order shall, however, continue till Monday, i.e. 09.04.2012.

**Order Date :-** 5.4.2012

AHA

(Vikram Nath, J.)      (S.R. Alam, C.J.)

**Court No. - 21**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble R.K. Agrawal, J.**

**Hon'ble Vinay Kumar Mathur, J.**

List before another Bench of which one of us (R.K. Agrawal, J.) is not a member.

Office is directed to place the papers before Hon'ble the Chief Justice for nominating another Bench.

As the interim order is expiring today, it is extended till the next date of listing.

**Order Date :-** 9.4.2012

T. Sinha

**Court No. - 37**

**Case :- SPECIAL APPEAL No. - 2362 of 2011**

**Petitioner :- M/S Hind Industries Limited**

**Respondent :- State Of U.P. And Others**

**Petitioner Counsel :- B.C. Rai**

**Respondent Counsel :- C.S.C., Pankaj Kumar Shukla**

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Aditya Nath Mittal, J.**

List this case on 14.08.2012.

Stay is extended till then.

**Order Date :- 4.7.2012**

Kpy

**Court No. - 32**

**Case :- SPECIAL APPEAL No. - 2362 of 2011**

**Petitioner :- M/S Hind Industries Limited**

**Respondent :- State Of U.P. And Others**

**Petitioner Counsel :- B.C. Rai**

**Respondent Counsel :- C.S.C., Pankaj Kumar Shukla**

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Aditya Nath Mittal, J.**

List in the next cause list.

Stay is extended till then.

**Order Date :- 14.8.2012**

Kpy

**Court No. - 32**

**Case :- SPECIAL APPEAL No. - 2362 of 2011**

**Petitioner :- M/S Hind Industries Limited**

**Respondent :- State Of U.P. And Others**

**Petitioner Counsel :- B.C. Rai**

**Respondent Counsel :- C.S.C., Pankaj Kumar Shukla**

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Arvind Kumar Tripathi (II), J.**

List this case on 21.9.2012. The stay order is extended till then.

**Order Date :- 7.9.2012**

SP/

**Court No. - 32**

**Case :- SPECIAL APPEAL No. - 2362 of 2011**

**Petitioner :- M/S Hind Industries Limited**

**Respondent :- State Of U.P. And Others**

**Petitioner Counsel :- B.C. Rai**

**Respondent Counsel :- C.S.C., Pankaj Kumar Shukla**

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Aditya Nath Mittal, J.**

List this case on 19.10.2012.

Stay is extended till then.

**Order Date :- 21.9.2012**

Kpy



**Court No. - 32**

**Case :- SPECIAL APPEAL No. - 2362 of 2011**

**Petitioner :- M/S Hind Industries Limited**

**Respondent :- State Of U.P. And Others**

**Petitioner Counsel :- B.C. Rai**

**Respondent Counsel :- C.S.C., Pankaj Kumar Shukla**

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Aditya Nath Mittal, J.**

List on 19.11.2012.

Stay is extended till then.

**Order Date :- 19.10.2012**

Kpy

**Court No. - 34**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble B. Amit Sthalekar, J.**

List on 17.12.2012.

Stay order is extended till then.

**Order Date :-** 19.11.2012

N Tiwari

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Pankaj Naqvi,J.**

As prayed, list on 16.1.2013. Interim order, granted earlier, shall remain in operation till the next date of listing.

**Order Date :-** 17.12.2012

Anupam

**Court No. - 34**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List on 6.2.2013.

Interim order, granted earlier, shall remain in operation till the next date of listing.

**Order Date :-** 16.1.2013

Meenu

**Court No. - 29**

**Case :- SPECIAL APPEAL No. - 2362 of 2011**

**Petitioner :- M/S Hind Industries Limited**

**Respondent :- State Of U.P. And Others**

**Petitioner Counsel :- B.C. Rai**

**Respondent Counsel :- C.S.C., Pankaj Kumar Shukla**

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List on 18.2.2013 showing the name of Shri Nripendra Mishra.  
The interim order is extended till then.

**Order Date :- 6.2.2013**

SP/

**Court No. - 29**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List on 11.3.2013.

Interim order, granted earlier, is extended till the next date of listing.

**Order Date :-** 18.2.2013

Meenu

**Court No. - 29**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List this case on 15.4.2013. Interim order, granted earlier, is extended till then.

**Order Date :-** 1.4.2013

RavindraKSingh

**Court No. - 29**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List this case on 29.4.2013. Interim order, granted earlier, is extended till then.

**Order Date :-** 15.4.2013

RavindraK Singh



**Court No. - 29**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List this case on 16.5.2013. Interim order, granted earlier, is extended till then.

**Order Date :-** 6.5.2013

RavindraK Singh

**Court No. - 29**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Petitioner :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Bharat Bhushan, J.**

List this case on 30.5.2013. Interim order granted earlier is extended till then.

**Order Date :-** 16.5.2013

RavindraKSingh

**Court No. - 29**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra,Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Bharat Bhushan,J.**

List this case on 11.7.2013. Interim order granted earlier is extended till then.

**Order Date :-** 30.5.2013

RavindraKSingh

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra,Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Surya Prakash Kesarwani,J.**

List on 29.7.2013.

Stay order is extended till then.

**Order Date :-** 11.7.2013

Ak/

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra,Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Surya Prakash Kesarwani,J.**

List on 12.8.2013 showing the name of Sri Chandan Agarwal as counsel for the respondent.

The stay order is extended till then.

**Order Date :-** 29.7.2013

Mukesh

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra,Pankaj  
Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Surya Prakash Kesarwani,J.**

On 29.7.2013 the case was adjourned on the ground that name of Shri Chandan Agrawal was not shown as learned counsel for the respondents and the stay was extended.

Once again we find that the name of Shri Chandan Agrawal has not been shown in the cause list. The office will submit explanation. List on 26th August, 2013. The interim order is extended till then.

**Order Date :-** 12.8.2013

SP/

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra,Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Surya Prakash Kesarwani,J.**

The Advocates of the Court are abstaining from work. No one appears for the petitioner. Sri R.B. Yadav, Additional Chief Standing Counsel, Ajai Kumar Goel, Sri Akhilesh Mishra and Sri Vishnu Pratap Singh, Standing Counsel are present.

List in the next cause list.

**Order Date :-** 26.8.2013

Mukesh

**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C.,Nripendra Mishra,Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Surya Prakash Kesarwani,J.**

As prayed, list in the next cause list showing the name of Shri Chandan Sharma as counsel for the respondent.

**Order Date :-** 3.9.2013

Mukesh



**Court No. - 32**

**Case :-** SPECIAL APPEAL No. - 2362 of 2011

**Appellant :-** M/S Hind Industries Limited

**Respondent :-** State Of U.P. And Others

**Counsel for Appellant :-** B.C. Rai

**Counsel for Respondent :-** C.S.C., Nripendra Mishra, Pankaj Kumar Shukla

**Hon'ble Sunil Ambwani, J.**

**Hon'ble Surya Prakash Kesarwani, J.**

We have heard Sri B.C. Rai, learned counsel appearing for the petitioner appellant. No one appears from the side of the respondents.

The appellant as a bulk consumer of electricity was found involved in theft of electricity as per inspection report dated 15.10.1997. A First Information Report was lodged against him. The Executive Engineer, Electricity, Urban Distribution Division II, District- Ghaziabad made an assessment on 21.10.1997 and prepared a bill for an amount of Rs. 24,47,884/-. The appellant deposited the amount on 5.12.1997 and made an application for permanent disconnection. The supply of electrical energy was permanently disconnected on 3.3.1999 and final bill of Rs. 5 lacs and odds was prepared, which the appellant requested for adjustment with the security amount. Hon'ble Supreme Court issued directions to the assessing authority to appoint State Level Bijli Adalat to the very fact that the matter relates to a large level theft of electricity and is a matter of assessment. The State Level Bijli Adalat from cases of assessment, in the case of the appellant in respect of theft of electricity was incorrect. It directed the assessing authority to

correct the bills, by which the appellant was increased to Rs. 1,22,55,783/-.

The appellant made a representation against the revised assessment and filed a writ petition no. 43936 of 2002 which was finally disposed of on 10.10.2002 directing the Superintending Engineer of the U.P.Power Corporation to decide the petitioner's representation by a speaking order.

There is nothing on the record to show that the writ petitioner made a representation to the Superintending Engineer. The matter remained pending.

In the meantime, the Additional Chief Judicial Magistrate-I, Ghaziabad by the order dated 23.3.2001 exonerated the appellant from the charge of theft of electricity and discharged the bail bond of Sri S.K.Singh who was released on bail. The matter remained pending for a long period of time until the appellant applied for fresh connection and only that the new electricity connection according to the U.P. Electricity Supply Code 2002 (in short "Supply Code, 2002") read in the Indian Electricity Act 2003, could not be given until the payment of old dues were made. The appellant is required to deposit the bank guarantee of Rs. 98 lacs as against the demand of Rs. 98,07,924/- along with the interest. The appellant submitted the bank guarantee.

At this stage, the representation in pursuance to the order of this Court dated 10.10.2002 is still pending. The Superintending Engineer passed an order on 12.7.2011 rejecting the representation without giving any opportunity of hearing to the appellant. The appellant filed a writ petition no. 58434 of 2011 M/s.Hind Industries Limited Vs. State of U.P. and others before this Court on 10.10.2010, challenging the order passed by the Superintending Engineer.

Learned Single Judge found that the appellant has applied

for modification of the order dated 10.10.2002 which remained pending. In the meantime, the department also applied for the modification of the order. The department however did not pursue the application which immediately came for orders before the Division Bench of this Court. On 12.10.2011 the learned Single Judge passed the following order :

*" A preliminary objection has been raised on behalf of the respondents that the present writ petition is liable to be dismissed on the ground of statutory alternative remedy of appeal available under the Electricity Code.*

*Petitioner is stated to be involved in theft of electricity. An assessment order was made on 17th August, 2002 raising a demand of Rs. 98 lacs and odds. Aggrieved petitioner filed writ petition no. 43936 of 2002 before this Court. The High Court permitted the petitioner to represent his grievance before the Superintending engineer, who in turn was directed to decide the same within a month. For a period of six weeks the recovery was stayed.*

*More than 9 years have elapsed from the date of expiry of the term of the interim order, petitioner has not deposited the disputed amount only in garb of the fact that he had filed a modification application which remained pending for years together. In between he succeeded in obtaining fresh connection for the same premises.*

*After the matter was argued at some length and after examination of the records of the present writ petition, the Court was satisfied that the present writ petition has to be dismissed. There has been grossest abuse of the process of the Court.*

*While proceeding to dismiss the petition, this Court noticed that the judgement may result in a liability being fastened upon the petitioner qua payment of interest at the rate of 16% compoundable after every 6 months as per Clause 8.1 of the Electricity Code. This Court, therefore, feels it just and proper to afford an opportunity to the petitioner to show-cause as to why such a direction be not issued while dismissing the present writ petition. For the purpose, a week's time would suffice. Further reasons in support of the judgement shall be recorded on the next date.*

*Put up this matter on 18th October, 2011 for consideration of the issue of interest and for dictation of the judgement before this Court. "*

The learned Single Judge found that the appellant has itself kept the matter pending before the authority for a long period of nine years. The assessment was neither submitted before the Superintending Engineer nor before the appellate authority. Learned Single Judge also found that if according to the arguments of learned counsel for the appellant, the Superintending Engineer do not have competence to decide the representation in view of the enforcement of the Code of 2002, it was open to the appellant to approach the Area Level Committee but the appellant did not chose to do so. Nine years passed and the reasons for inaction have not been explained. No representation was filed before the Area Level Committee.

The learned Single Judge dismissed the writ petition with following observations :

*"It is always open to the petitioner to approach the Area Level Committee and to seek redressal of his grievance in view of aforesaid.*

*It is not necessary for this Court to consider the rival contention raised qua the correctness or otherwise of the order impugned in this petition passed by the Superintending Engineer dated 12.7.2011. This Court may record that even if the contention raised on behalf of the petitioner to the effect that order passed by the Superintending Engineer is found to be illegal for want of jurisdiction because of the applicability of the U.P. Electricity Supply Code, 2002. It would only mean that the representation filed by the petitioner before the Superintending Engineer itself was before an incompetent authority and, therefore, the order passed on such a representation would be of no consequence.*

*There is no challenge to the assessment order before any competent authority as on date.*

*This Court finds that the Division Bench of this Court in the case of Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. vs. Union of India & Ors., reported in (2003) 3 Company Law Journal, 328 (Alld) has laid*

*down that payment of interest is a necessarily corollary to the retention of the amount. It is neither penal nor it is confiscatory.*

*The issue of applicability of Act No. 2003 and the rate of interest to be charged is left open to be examined by the competent authority itself in accordance with the statutory provisions.*

*In the facts of the case such interest cannot be less than bank rates applicable for the relevant period.*

*This Court further directs that the Principal Secretary (Energy), Government of U.P. Lucknow shall hold a detailed enquiry in the matter both against the Officers of U.P. Power Corporation at Ghaziabad as well as the petitioner qua the manner in which recovery of the lawful dues was withheld for 9 years, and further as to how sanction for a new connection in favour of the petitioner was directed without insisting upon deposit of the entire outstanding amount along with interest being ensured. Such exercise must be completed within four weeks from the date a certified copy of this order is filed before him. All consequential action as may be warranted under law be taken against all found responsible for the situation.*

*Subject to the aforesaid observation, writ petition is dismissed. "*

It is submitted by Sri B.C.Rai that the appellant is not against the assessment order. The revised assessment of Rs. one crore was illegal and arbitrary. The appellant was also not given any notice nor was heard by the State Level Bijli Adalat which directed the assessing authority to revise the bills. Sri B.C.Rai further submits that there is no provision for charging interest under the old Act and in any case since the appellant was not at fault, the department did not decide the representation in time.

We are not inclined to accept any of the arguments in as much as the appellant neither approached the Superintending Engineer nor the appellate authority under Section 127 of the Electricity Act, after it was enforced of the Electricity Act 2003. In fact the appellant has been waiting and kept the matter pending.

We are unable to ascribe the argument that if the criminal case of theft of electricity results into acquittal, the assessment order does not survive. The acquittal may be on variety of grounds, which has nothing to do with the assessment of the electricity. The assessment of electricity charges, on account of theft is provided under the Act.

We do not find that the appellant has lost its rights to challenge the assessment order. In fact, the appellant does not want to challenge the assessment order and is taking variety of grounds to avoid such challenge. So far the interest on the assessed amount is concerned with Section 127 (6) of the Electricity Act (hereinafter referred to as Act 2003) specifically provides for interest at the rate of 16% per annum compounded every six months. As to whether there was provision of charging interest under the old Act can be raised before the appellate authority.

The special appeal has no merits and is accordingly dismissed.

**Order Date :- 8.10.2013**

Ashish Pd.